

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK **on** 05/18/26
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **Angela Hughey vs. Promesa Apartments**
Superior Court Case No. 25CECG05699

Hearing Date: May 20, 2026 (Dept. 502)

Motion: Demurrer

Tentative Ruling:

To sustain defendant's demurrer with leave to amend. Plaintiff is granted leave of 30 days to file a first amended complaint, which shall run from service by the clerk of the minute order. New language must be set in **boldface** type.

Explanation:

Defendant Fresno 1101 Parkway, LP ("Fresno 1101" or "defendant") hereby demurs to plaintiff, Angela Hughey's ("Hughey" or "plaintiff") complaint on the grounds that it is uncertain and fails to state facts sufficient to constitute a cause of action because 1) the complaint contains no causes of action and 2) it contains bare bones factual allegations that are insufficient to constitute a cause of action. The only factual allegations are "do [sic] to complete harassment from manager at Promesa," "discriminated, threats due to harassment" and "roach infestation."

The function of a demurrer is to test the sufficiency of a pleading by raising questions of law. (*Plumlee v. Poag* (1984) 150 Cal.App.3d 541, 545.) As relates to a complaint, the test is whether plaintiff has succeeded in stating a cause of action; the court does not concern itself with the issue of plaintiff's possible difficulty or inability in proving the allegations of the complaint. (*Highlanders, Inc. v. Olsan* (1978) 77 Cal.App.3d 690, 697.) In assessing the sufficiency of the complaint against demurrer, we treat the demurrer as admitting all material facts properly pleaded, bearing in mind the appellate courts' well established policy of liberality in reviewing a demurrer sustained without leave to amend, liberally construing the allegations with a view to attaining substantial justice among the parties. (*Glaire v. LaLanne-Paris Health Spa, Inc.* (1974) 12 Cal.3d 915, 918.)

A complaint must state facts sufficient to constitute a cause of action per California Code of Civil Procedure section 430.10. A prerequisite to this is that the complaint in fact contain at least one legally recognized cause of action, which is the specific legal basis and set of facts showing why the defendant owes the plaintiff relief, supported by facts for each element of the claim. Without a valid cause of action, the complaint lacks the legal grounds for the lawsuit and is subject to a demurrer.

Here, the universe of factual allegations in Hughey's complaint are "do [sic] to complete harassment from manager at Promesa," "discriminated, threats due to harassment" and "roach infestation." Said allegations are insufficient to constitute a cause of action and to apprise Fresno 1101 of the particular allegations and/or claims

Even though the allegations are made on a Judicial Council form complaint, they are subject to challenge if the form is not filled out completely and correctly, i.e., they are supposed to have the forms for causes of action attached. The complaint fails to plead facts pertaining to any element of any cause of action, e.g. that defendant owed a legal duty and breached said duty. Accordingly, the demurrer is sustained for those reasons.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 05/19/26
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